



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES of the MEETING
Monday, April 22, 2024, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting to be held on Monday, April 22, 2024, at 7:00 PM at the Town Offices, 1 South Road.

Call to Order

The meeting was called to order at 7:00 PM

Present: Maureen Dempsey, Chair; Scott Johndrow, Susan Bronstein.

Others Present: Douglas Finn; others as noted.

General Business

Discussion – COPS Grant

Present: Chief David White.

The board engaged in conversation about a potential application for COPS grant, which would provide up to 75 percent of an officer or deputy entry-level salaries and fringe benefits for three years within a five-year period of performance to accommodate time needed for recruitment and hiring.

Chief white noted the COPS grant is a three-year grant, where 75% of a position is funded over three years. The grant allows for up to two years to begin disbursement.

Mr. Finn: what happens in year four – after three years of disbursement? Chief White: the town would have to layoff the person hired, or carry the entire salary.

After significant deliberation, the board agreed that the conversation should continue, and that the Finance Committee should be looped in.

The Chief noted that he would need to know whether or not to file the grant application by mid-May at the latest.

Mr. Johndrow noted the importance of local policing, and having a police officer at the ready in the town should be emphasized as a priority to town residents.

Request – Kestral Land Trust

Ms. Bridget Likely, Conservation Manager for Kestral Land Trust, was present, and noted that Kestrel Land Trust is in the process of finalizing two conservation restrictions located in Westhampton that will need Selectboard approval.

Ms. Likely provided the Board with a brief overview of the CRs.

The two parcels are part of a State Landscape Partnership grant, and both are landlocked, forested parcels on the Southampton/Westhampton border, and are abutting or near currently protected lands. One piece is about 115 acres, the other about 15.

The larger piece will have guaranteed public access, while access to the smaller parcel is undetermined.

A map showing the location and acreage of each was provided for review.

One is currently under conservation restriction, and will remain in private ownership; the

other will be owned in fee by Kestrel Land Trust, with a CR held by Mass Audubon. The properties are currently owned by Minard (Lyman Road) and Geryk (Southampton Road).

Neither parcel is a buildable lot on its own.

Ms. Likely suggested that she may return seeking approval for the CR at the regular meeting on May 20, and thanked the board for their time.

Discussion – Franchise Renewal Agreement

Mr. Finn requested approval to enter into negotiations for a PEG access agreement with Northampton Open Media. If successful, Mr. Finn recommended that the Town engage Comcast to request provisions in the franchise agreement for PEG access funding, with funds to go to NOM.

Mr. Finn noted that current negotiations with Comcast were proposing a full 100% plant buildout.

Department Reports

Board of Health

Ms. Katch Bachelor reported the following for the Board of Health:

A certified and regular letter will be sent to residents at a particular property which was the subject of some concern related to the living conditions on the site. Ms. Bachelor noted that the FHD was interested in getting the residents some help, and not causing disruption, and that the public health nurse and FHD director would be trying to make a visit in the near future.

Master Plan Implementation Committee

Ms. Teri Anderson noted that, in spite of best efforts, it would be very difficult to meet the deadline for the MVP grant cycle this year, and that it would have to be put off until the next year.

However, given the amount of time necessary to build a proper application, the extra time will be helpful. Additional information will also take time to properly research and prepare for the application.

The board discussed a proposal for implementation of solar on Town Owned Buildings, as follows:

Solar on Town Hall:

- Array Size: 43 x 410 watt panels 17.63 kW
- Production estimate: 19,117 kWhs annually
- Estimated Pricing: \$3.64/watt, or \$64,000, inclusive of turnkey installation and prevailing wage.

Mr. Finn noted the following budget:

Estimate (Northeast Solar)	64,000.00
10% (Engineering) + 10% (contingency)	12,000.00
Total Project Budget:	76,000.00
Direct Pay (30%) from Fed. Gov.	- 22,800.00
Net Cost:	53,200.00
To be appropriated from ARPA:	53,200.00

The board generally approved the plan. Mr. Finn asked that ARPA funding not be approved until after project procurement was completed, and a real final cost was in hand.

Solar on Public Safety Complex:

- Array Size: 106 x 410 watt panels, 43.46 kW
- Production estimate: 50,070 kWhs annually
- Average pricing: \$3.50/watt,
- Pricing: \$152,000, Inclusive of turnkey installation and prevailing wage

Mr. Finn noted the following project budget:

Estimate (Northeast Solar)	152,000.00
10% (Engineering) + 10% (contingency)	30,400.00
Total Budget:	182,400.00
Direct Pay (30%)	54,720.00
Net Cost:	127,680.00
Borrowing (10 years):	127,680.00

Mr. Finn recommended a warrant article, asking for authorization to borrow the funds necessary to install a solar array on the public Safety complex. Without objection.

The board noted that the information needed to be provided to the Finance Committee for their review and questions.

Administrative Business

Appointment – Historic Commission

Mr. Finn noted a request from Steve Brooks to appoint Mr. Nick Jarjoura to the Historic Commission, and a followup recommendation from Mr. Brooks in Mr. Jarjoura's behalf. After brief deliberation, it was MOVED by Bronstein, SECONDED by Johndrow

To appoint Mr. Jarjoura to the Historic Commission

VOTED: 3, 0, 0 (7:54 PM)

Appointment – ADA Coordinator

Mr. Finn noted that by law, municipalities must have an ADA Coordinator, and that towns with 50 or more employees are required to fulfill the following additional administrative requirements:

- Appoint a well-placed employee to ensure the municipality's ADA compliance, who may not be a volunteer.
- Have a grievance procedure that includes a way for people to share questions, concerns, and comments about the municipality's ADA compliance.
- Post public notification of the municipality's commitment to ADA compliance.
- Keep an ADA Self-Evaluation on file.
- Prepare and conduct an ADA Transition Plan that lays out how the municipality plans to prioritize the removal of architectural barriers that impact access to programs services and activities.

Mr. Finn noted that an "ADA Title II Action Guide" is available from the New England ADA Center that outlines a step-by-step process to Title II compliance. The Mass Office on Disability also offers more information on disability rights in government services,

including program access, integration, and effective communication.

After deliberation, it was MOVED by Bronstein, SECONDED by Johndrow

To appoint Mr. Finn as ADA Coordinator for the Town of Westhampton.

VOTED: 3, 0, 0 (8:00 PM)

Ms. Bronstein offered her services and experience in this area as well.

Municipal Budget – Final Review

Mr. Finn presented a handout with the final budget as it stands currently. Mr. Finn noted that a late submission of vocational education tuition costs had thrown the budget into the negative, and that there would have to be significant deliberations by the Finance Committee in regard to the overall numbers. There was some discussion related to specific line items, but no specific action taken.

Town Meeting Warrant

Mr. Finn presented a final version of the warrant, and noted that legal counsel had received a copy for review, but had not commented as of yet. In order to meet statutory posting requirements, Mr. Finn requested that the board vote to close the warrant, and post, and return to sign the warrant after review by Counsel.

It was MOVED by Johndrow, SECONDED by Bronstein

To close the town meeting warrant, and pending review by counsel, to sign and post.

REVIEW - ADA Notice (to be posted)

POLICY REVIEW – First Reading – ADA Grievance Procedure

The board took up two proposed documents – an ADA notice to be posted in all town buildings, and a proposed ADA grievance procedure. The two documents were accepted for first reading and review, but no action was taken. Both will be taken up at the next regular meeting.

Review Correspondence if any

No correspondence was reviewed or acted upon.

Review and Sign: Payroll and A/P Warrants: W24-22, WP24-22

After review, it was MOVED by Bronstein, SECONDED by Johndrow

To approve Warrants W24-22, and WP24-22 as presented.

VOTED: 3, 0, 0 (8:18 PM)

Review and Sign: Minutes from Previous Meetings

After deliberation, it was MOVED by Bronstein, SECONDED by Johndrow

To approve the minutes from April 8, 2024 (Open Session) as presented.

VOTED: 3, 0, 0 (8:18 PM)

Set date for next meetings –

Ms. Dempsey noted the following upcoming meetings:

- May 6 (7 PM), May 20 (7 PM)
- Town Meeting: May 11, 9 AM

Other matters

Ms. Bronstein suggested that members rotate their participation on the Master Plan Implementation Committee. After some discussion, the board agreed to the proposal.

Executive Session – if needed or requested

Mr. Finn requested Executive Session Requested to discuss matters related to pending litigation, and to review minutes from previous executive sessions.

It was MOVED by Johndrow, SECONDED by Bronstein;

To enter into executive session for the purposes of approving minutes from a previous executive session, and to discuss matters relative to pending litigation.

VOTED: JOHNDROW – YES; BRONSTEIN – YES; DEMPSEY – YES.

The board entered executive session at 8:25 PM.

Executive Session

Adjournment

There being no further business, it was MOVED by Johndrow, SECONDED by Bronstein

To exit Executive Session and immediately to adjourn.

VOTED: JOHNDROW – YES; BRONSTEIN – YES; DEMPSEY – YES. (8:34 PM)

Respectfully submitted,

Douglas C. Finn

Approved by a vote of the Selectboard at a regular meeting, held on May 6, 2024.



Maureen Dempsey

Scott Johndrow



Susan Bronstein